

Transfer of Title by Will and the Testator in Michigan

A **testator** is a person who drafts a valid will. (If the testator is a woman, she may be called a **testatrix**.) Remember the phrase from those 'reading of the will' scenes in Agatha Christie movies: "Being of sound mind and body ..."? Did you ever wonder why that phrase was used? It's because, to draft a valid will, the testator must know what they're doing. In Michigan, this means the testator must be of legal capacity (be of sound mind) and legal age-age 18 or older. "Sound body" is not a requirement for legal capacity; in fact, many people are in poor health when their will is drafted, having put it off until it's almost too late. But sound mind is a requirement. This prevents the gardener, for instance, from convincing an addle-minded wealthy widow to leave her entire estate to him just before he doses her tea with arsenic.

In Michigan, testators must have the legal capacity to make a valid will. This includes being at least 18 years of age and of sound of mind. And the testator must sign the will for it to be valid. You may hear the term **in probate**, which means that a court is tasked with determining if a will is valid or not. Probate also occurs when a person dies without a will.

When people die without a will, it is termed **intestate**. **Intestate succession** determines how the deceased's property is to be distributed. The heirs take title by descent-the way in which they are related to the deceased. In order of priority it is: spouse, children, parents, and siblings, followed by more distant relatives. If no heirs can be found, the property of the deceased may be claimed by the state through escheat.

If a testator names someone to carry out the provisions of the will, that person is called an **executor or executrix**. If no one is named, the court will appoint someone as **administrator or administratrix**. Often, the male version of the term is used as an all-encompassing gender-neutral term. A gift of real property is a **devise**. The recipient is the **devisee**. A gift of personal property is called a **bequest or legacy**, and the recipient is called the **legatee**.